

GENERAL SPECIFICATION G2.29

Maintenance and Defects Liabilities

CONTENTS

G2.29 Maintenance and Defects Rectification1

 G2.29.1 General.....1

 G2.29.2 Contractor's Obligations1

 G2.29.3 Identification and Management of Defects.....1

 G2.29.4 Reporting1

G2.29 MAINTENANCE AND DEFECTS RECTIFICATION

G2.29.1 General

- (a) The duration of any Defects Liability Periods (DLP) is stated in the Appendix to the PSSCoC. The DLP(s) will commence on issue of the Certificate of Substantial Completion for parts or the whole of the Works and will end at the time specified in the Appendix to the PSSCoC.

G2.29.2 Contractor's Obligations

- (a) During the DLPs the Contractor shall be responsible for the following:
 - (i) Finding and rectifying defects in accordance with the Contract, including the provision of all supervision, labour, parts and materials; and
 - (ii) The provision of all replacement parts required for the rectification of any defect.

G2.29.3 Identification and Management of Defects

- (a) A consolidated Preliminary Defects List will be issued by the S.O. to the Contractor as a pre-requisite to the issue of the Certificate of Substantial Completion. The Preliminary Defects List will describe all defects of which the S.O. is aware at the time of Substantial Completion. The Preliminary Defects List shall be maintained and managed by the Contractor during the DLPs, and subject to the agreement of the S.O. each defect will be assigned a classification – Severe, Moderate or Minor:
 - (i) Severe means defects which disrupt the performance or normal operation of the plant or cause workplace health and safety to be compromised;
 - (ii) Moderate means defects that potentially could affect the plant / facility operation but can be compensated by operation changes. These include equipment failures where the standby equipment starts up automatically; and
 - (iii) Minor means all other defects not classified above or do not affect the plant / facility operation.
- (b) The Contractor shall address all defects during the DLP and shall prioritise rectification of Severe, Moderate and Minor defects to the satisfaction of the S.O..
- (c) During the DLPs, the S.O. will advise the Contractor of any defects arising after issue the Preliminary Defects List and these shall be addressed by the Contractor.

G2.29.4 Reporting

- (a) From Month 2 onwards, during the first week of each month of the DLP, the Contractor shall provide a report on progress of defects rectification. The monthly report shall include an update of the Preliminary Defects List. The report shall include details of all rectified defects during the month and a look ahead for the following month.

END OF SECTION